

Law reviews: For a discussion of a Tenth Circuit decision dealing with elections, see 66 Den. U.L. Rev. 757 (1989); for article, "Psst-There's a New Election Code", see 22 Colo. Law. 1703 (1993); for article, "Hey, They Revised the Election Code Again!", see 23 Colo. Law. 1821 (1994); for article, "Yes, Even More Election Code Revisions", see 24 Colo. Law. 1803 (1995); for article, "Fill in the Blank: More ____ Election Code Revisions", see 25 Colo. Law. 93 (Aug. 1996); for article, "Wow, What a Surprise! Still More Election Code Revisions", see 26 Colo. Law. 77 (Aug. 1997); for article, "Florida Fallout and Other Colorado Election Law Amendments of 2002", see 31 Colo. Law. 63 (Aug. 2002).

PART 1

DEFINITIONS AND GENERAL PROVISIONS

1-1-101. Short title. Articles 1 to 13 of this title shall be known and may be cited as the "Uniform Election Code of 1992"; within these articles, "this code" means the "Uniform Election Code of 1992".

Source: L. 92: Entire article R&RE, p. 624, § 1, effective January 1, 1993.

Editor's note: This section is similar to former § 1-1-101 as it existed prior to 1992.

1-1-102. Applicability. (1) This code applies to all general, primary, congressional vacancy, school district, special district, ballot issue, and other authorized elections unless otherwise provided by this code. This code applies to any municipal election conducted as part of a coordinated election except to the extent that this code conflicts with a specific charter provision. Any municipality may provide by ordinance or resolution that it will utilize the requirements and procedures of this code in lieu of the "Colorado Municipal Election Code of 1965", article 10 of title 31, C.R.S., with respect to any election.

(2) For elections that must be coordinated pursuant to section 20 (3)(b) of article X of the Colorado constitution where the enabling legislation does not require that the electors be registered electors, the political subdivision may conduct its elections pursuant to the enabling legislation but it must assure that the notice required by part 9 of article 7 of this title is provided to the election official responsible for publishing the ballot issue notice.

Source: L. 92: Entire article R&RE, p. 624, § 1, effective January 1, 1993. **L. 93:** Entire section amended, p. 1393, § 1, effective July 1. **L. 94:** (2) amended, p. 1149, § 1, effective July 1.

Editor's note: This section is similar to former § 1-1-102 as it existed prior to 1992.

Cross references: For the definitions of "general election", "primary election", and "congressional vacancy election", see §§ 1-1-104 (17), 1-1-104 (32), and 1-1-104 (5), respectively.

1-1-103. Election code liberally construed. (1) This code shall be liberally construed so that all eligible electors may be permitted to vote and those who are not eligible electors may be kept from voting in order to prevent fraud and corruption in elections.

(2) It is also the intent of the general assembly that non-English-speaking citizens, like all other citizens, should be encouraged to vote. Therefore, appropriate efforts should be made to minimize obstacles to registration by citizens who lack sufficient skill in English to register without assistance.

(3) Substantial compliance with the provisions or intent of this code shall be all that is required for the proper conduct of an election to which this code applies.

Source: **L. 92:** Entire article R&RE, p. 624, § 1, effective January 1, 1993. **L. 96:** (1) amended and (3) added, p. 1732, § 1, effective July 1.

Editor's note: This section is similar to former § 1-1-103 as it existed prior to 1992.

1-1-104. Definitions. As used in this code, unless the context otherwise requires:

(1) "Abstract of votes cast" means a certified record of the results in each election for candidates for any office, ballot issue, or ballot question that the county clerk and recorder certified for the ballot.

(1.1) "Address of record" means the elector's place of residence or the elector's deliverable mailing address, if different from the elector's place of residence.

(1.2) "Affiliation" means an elector's decision to affiliate with either a political party or a political organization, as defined in subsections (24) and (25) of this section.

(1.3) "Assembly" means a meeting of delegates of a political party, organized in accordance with the rules and regulations of the political party, held for the purpose of designating candidates for nominations.

(1.5) "Authorizing legislation" means the provisions of the state constitution or statutes or of a local charter authorizing the existence and powers of a political subdivision and providing for the call and conduct of the political subdivision's election.

(1.7) "Ballot" means the list of all candidates, ballot issues, and ballot questions upon which an eligible elector is entitled to vote at an election.

(2) "Ballot box" means the locked and sealed container in which ballots are deposited by eligible electors. The term includes the container in which ballots are transferred from a polling location to the office of the designated election official and the transfer case in which electronic ballot cards and paper tapes and the "prom" or any other electronic tabulation device are sealed by election judges for transfer to the central counting center.

(2.1) "Ballot card" means the card, tape, or other vehicle on which an elector's votes are recorded in an electronic or electromechanical voting system.

(2.3) "Ballot issue" means a state or local government matter arising under section 20 of article X of the state constitution, as defined in sections 1-41-102 (4) and 1-41-103 (4), respectively.

(2.5) "Ballot issue notice" means the notice which is required by section 20 (3)(b) of article X of the state constitution and comprises the material between the notice title and the conclusion of the summary of comments.

(2.7) "Ballot question" means a state or local government matter involving a citizen petition or referred measure, other than a ballot issue.

(2.8) "Confirmation card" means a communication mailed from a county clerk and recorder to an elector pursuant to section 1-2-302.5 (2)(b)(III), 1-2-509 (3)(b)(III), or 1-2-605, which card must:

- (a) Be mailed to the elector's address of record;
- (b) Be sent by forwardable mail;
- (c) Comply with all relevant requirements of the federal "National Voter Registration Act of 1993", 52 U.S.C. sec. 20501 et seq., as amended; and

- (d) Include a postage-prepaid, preaddressed form by which the elector may verify or correct his or her address information.

- (3) (Deleted by amendment, L. 94, p. 1750, § 1, effective January 1, 1995.)

- (4) (Deleted by amendment, L. 93, p. 1394, § 2, effective July 1, 1993.)

- (5) "Congressional vacancy election" means an election held at a time other than the general election for the purpose of filling a vacancy in an unexpired term of a representative in congress.

- (6) "Convention" means a meeting of delegates of a political party, organized in accordance with the rules and regulations of the political party, held for the purpose of selecting delegates to other political conventions, including national conventions, making nominations for presidential electors, or nominating candidates to fill vacancies in unexpired terms of representatives in congress or held for other political functions not otherwise covered in this code.

- (6.5) "Coordinated election" means an election where more than one political subdivision with overlapping boundaries or the same electors holds an election on the same day and the eligible electors are all registered electors, and the county clerk and recorder is the coordinated election official for the political subdivisions.

- (7) "County" includes a city and county.

- (7.5) "Deliverable mailing address" means the elector's mailing address if different from the elector's address of record as specified in accordance with section 1-2-204 (2)(f).

- (8) "Designated election official" means the member of a governing board, secretary of the board, county clerk and recorder, or other person designated by the governing body as the person who is responsible for the running of an election.

- (9) "District captain" or "district co-captain" means any registered elector who is a resident of the district, is affiliated with a political party, and is designated or elected pursuant to political party rules of the county.

- (9.5) "District office of state concern" means those elective offices, involving congressional districts or unique political subdivisions with territory in more than one county and with their own enabling legislation, as identified by rules of the secretary of state based upon the method for designating candidates for office and responsibility for identification and qualification of candidates.

- (9.6) "Driver's license" means any license, temporary instruction permit, or temporary license issued under the laws of this state pertaining to the licensing of persons to operate motor vehicles and any identification card issued under part 4 of article 2 of title 42, C.R.S.